

[doc. web n. 10111106]
Provision of January 16, 2025
Register of provisions
n. 10 of January 16, 2025

THE GUARANTOR FOR THE PROTECTION OF PERSONAL DATA

IN THE meeting held today, attended by
Prof. Pasquale Stanzione, President, Prof.
Ginevra Cerrina Feroni, Vice President, Dr.
Agostino Ghiglia and Attorney Guido Scorza, members, and
Secretary General Fabio Mattei;

HAVING REGARD TO Regulation (EU) 2016/679 of the European Parliament
and of the Council, of April 27, 2016 (hereinafter, "Regulation");

HAVING REGARD TO the Code regarding the protection of personal data, containing provisions for
the adaptation of the national legal system to Regulation (EU) 2016/679 (Legislative Decree of June
30, 2003, n. 196, as amended by Legislative Decree of August 10, 2018, n. 101, hereinafter "Code");

HAVING REGARD TO the complaint submitted pursuant to Article 77 of the Regulation by Mr. XX,
who reported a violation of the rules on the protection of personal data by Dr. Enrico Giliberti, in his
capacity as the competent doctor;

HAVING EXAMINED the documentation on file;

HAVING REGARD TO the observations made by the Secretary General pursuant to Article 15 of the
Guarantor's Regulation n. 1/2000;

REPORTING Dr. Agostino Ghiglia;

PREMISED

1. The investigation initiated following the submission of the complaint.

With a complaint submitted on 01/17/2023, regularized on 04/17/2023, pursuant to Article 77 of the
Regulation, Mr. XX, through the RSU and RLSA union delegate at Eni S.p.A. XX, complained of
unlawful processing of personal data by Dr. Enrico Giliberti, the competent doctor and data controller
of the health-related personal data of the workers of the Southern District DIME/Viggiano of Eni
Natural Resource where the complainant performed his work.

In particular, from the documentation attached to the complaint, it emerged that, on 05/11/2021, Dr.
Giliberti transmitted to Eni S.p.A. Upstream DIME, to the Personnel Manager Eni DIME XX, to the
RSSPP XX, and to the industrial health and hygiene specialist XX, a report titled "Anamnesis
Summary of Mr. XX" in which information regarding the complainant's health status and the main
medical events that occurred in 2021 were reported.

The Office, therefore, made a request for information to the party, pursuant to Article 157 of the Code,
aimed at understanding the legal grounds referred to in Articles 6 and 9 of the Regulation, underlying
the communication of the complainant's sensitive data to the employer (note of 06/16/2023, reiterated
on 09/28/2023).

The party responded with a note dated 10/22/2023, stating that "With the report of May 11, 2021, I did
not believe I had disclosed information relating to diagnoses and/or family anamnesis of Mr. XX. I
believe I only outlined the state of reactive anxiety in which XX was, which was widespread in a large
part of the population during the years 2020/2021, as a tragic consequence of the COVID-19
pandemic."

No further information was provided regarding the circumstances that led to the communication of
personal information to third parties and the legal grounds for the processing carried out.

2. The initiation of the procedure for the adoption of corrective and sanctioning measures pursuant to
Article 58, paragraph 1, letter d), of the Regulation and Article 166, paragraph 5, of the Code.

In light of the information collected, the Office proceeded to notify the party, pursuant to Article 166,

paragraph 5, of the Code, of the initiation of the procedure for the adoption of corrective and sanctioning measures for the violation of Articles 6 and 9 of the Regulation, also with reference to the specific sector regulations applicable, in particular Legislative Decree n. 81/2008 (note of 01/24/2024). The party, although informed by the Office of the possibility of submitting defensive writings or documents in relation to the sanctioning procedure against him, did not provide any documentation in this regard.

3. The outcome of the investigation and the procedure for the adoption of corrective and sanctioning measures.

That said, at the conclusion of the investigation carried out based on the statements made and the documentation produced in the records, it has been established that Dr. Giliberti, in his capacity as the competent doctor, as well as the data controller pursuant to Article 4, n. 2, of the Regulation, has carried out processing of so-called sensitive data relating to the complainant that is not compliant with the rules on the protection of personal data.

In particular, it emerged that Dr. Giliberti, serving as the competent doctor of Eni S.p.A. responsible for the health surveillance of the complainant from 2017 to 2020, sent a communication to the company's managers informing them of the complainant's health status (an employee of Eni S.p.A.) and the clinical investigations carried out during 2021, also by the competent doctor who subsequently took over.

It is noted that, unless the act constitutes a more serious offense, anyone who, in a proceeding before the Guarantor, falsely declares or certifies news or circumstances or produces false acts or documents is liable pursuant to Article 168 of the Code "Falsehood in declarations to the Guarantor and interruption of the execution of the tasks or exercise of the powers of the Guarantor."

****With reference to the role of the competent doctor, it is necessary to remember that he is, by law, the only one authorized to process, in full autonomy and competence, the personal data of a health nature of workers, where the information related to the diagnosis and/or medical history of the worker cannot be processed by the employer in any way except to the extent of the mere judgment of suitability for the specific task and the prescriptions that the professional sets as working conditions (art. 25, paragraph 1, letter i) of Legislative Decree 81/2008, which provides that the doctor "communicates to the employer [...] the anonymous collective results of health surveillance").****

****In line with the above, the Authority has emphasized the role of the competent doctor as an autonomous data controller, who carries out treatments aimed at assessing the suitability for the task of workers for the purposes and within the framework indicated by the sector law referred to in Legislative Decree 81/2008 (see, in this regard, the measures adopted by the Authority no. 194 of 27/04/2016 web doc no. 5149198; no. 522 of 31/08/2023, web doc no. 9965614; regarding the maintenance of health and risk records by the competent doctor and the different activity of maintaining and updating the personal files of employees by the employer, the measure entitled "Guidelines on the processing of personal data of workers for the purposes of managing the employment relationship with employers" of 23/11/2006, web doc no. 1364939).****

****Therefore, any flows of personal data between the employer and the competent doctor must be understood as "communications" of personal data (art. 2-ter, paragraph 4, letter a) of the Code), the prerequisites of which can be found in the aforementioned regulatory framework. With reference to the so-called special data referred to in art. 9, paragraph 1, of the Regulation, it is highlighted that their processing is permitted if "necessary for the purposes of preventive medicine or occupational medicine, assessment of the employee's work capacity, diagnosis, health assistance or therapy (...) based on Union law or the law of the Member States (...)" (art. 9, paragraph 2, letter h, of the Regulation).****

****In light of the aforementioned regulatory framework, it is thus established that the communication of information regarding the health status of the complainant occurred outside the specific competencies and obligations established by the legislation.****

****4. Conclusions: declaration of unlawfulness of the processing. Corrective measures pursuant to art. 58, paragraph 2, of the Regulation.****

For the reasons stated above, the Authority believes that the declarations, documentation, and reconstructions provided by the data controller during the investigation do not allow for overcoming the observations notified by the Office with the initiation of the procedure and are therefore unsuitable to allow the archiving of this procedure, as none of the cases provided for by art. 11 of the Garante Regulation no. 1/2019 apply. The processing of the so-called special data carried out by the competent doctor, specifically consisting of the communication of data relating to the health status to the employer, is unlawful, as it occurred in the absence of an appropriate legal basis as per arts. 6 and 9, paragraph 2, of the Regulation.

5. Adoption of the injunction order for the application of the administrative pecuniary sanction and accessory sanctions.

As a result of the procedure, it is therefore established that the party has violated arts. 6 and 9, paragraph 2, of the Regulation. The violation of the aforementioned provisions entails the application of the administrative sanction provided for by art. 83, paragraph 5, letter a), of the Regulation.

Considering the need to apply paragraph 3 of art. 83 of the Regulation, which states that “If, in relation to the same processing or related processing, a data controller [...] violates, with intent or negligence, various provisions of this regulation, the total amount of the administrative pecuniary sanction does not exceed the amount specified for the most serious violation,” the total amount of the sanction is calculated so as not to exceed the maximum penalty provided for by the same art. 83, paragraph 5.

With reference to the elements listed in art. 83, paragraph 2, of the Regulation for the purpose of applying the administrative pecuniary sanction and its quantification, considering that the sanction must “in any case [be] effective, proportionate, and dissuasive” (art. 83, paragraph 1 of the Regulation), it is represented that, in this case, the following circumstances have been considered:

- **with reference to the nature, gravity, and duration of the violation, the violation in question must be considered significant as it involved the communication to third parties of data falling within the so-called special categories and the level of damage suffered by the interested party;**
- **the degree of responsibility of the data controller who, in carrying out his duties, processed the complainant's data, in the absence of suitable legal bases;**
- **the categories of data affected by the violation, which fall within the so-called special data;**
- **the absence of previous relevant violations committed by the controller;**
- **the absence of cooperation from the professional who, during the procedure, did not provide useful elements for evaluation.**

It is also believed that the principles of effectiveness, proportionality, and dissuasiveness, to which the Authority must adhere in determining the amount of the sanction (art. 83, paragraph 1, of the Regulation), are relevant in this case.

Regulation), the economic conditions of the offender, determined based on the turnover related to the 2023 budget.

In light of the above-mentioned elements and the assessments made, it is deemed appropriate, in this specific case, to apply to Enrico Giliberti the administrative sanction of a payment of an amount equal to €2,000.00 (two thousand).

In this context, it is also considered that pursuant to Article 166, paragraph 7, of the Code and Article 16, paragraph 1, of the Regulation of the Authority No. 1/2019, the publication of this section containing the injunction order on the Authority's website should proceed.

This is in consideration of the type of violations identified that involved so-called special data, and the circumstance that the conduct was carried out by a subject who, in the performance of their duties, failed to comply with specific sector regulations as well as personal data protection regulations.

ALL OF THE ABOVE CONSIDERED, THE AUTHORITY pursuant to Article 57, paragraph 1, letter f), and Article 83 of the Regulation, notes the illegality of the

processing carried out by Enrico Giliberti, s.r.l., in the capacity of competent doctor, Tax Code XX, for the violation of Articles 6 and 9, paragraph 2, of the Regulation;

ORDERS

pursuant to Article 58, paragraph 2, letter i) of the Regulation that the same pay the total amount of €2,000.00 (two thousand) as an administrative pecuniary sanction for the violations indicated in this provision;

INSTRUCTS

the same to pay the aforementioned sum of €2,000.00 (two thousand), according to the methods indicated in the annex, within 30 days from the notification of this provision, under penalty of the adoption of the consequent executive acts in accordance with Article 27 of Law No. 689/1981.

It is represented that, pursuant to Article 166, paragraph 8, of the Code, the offender retains the option to settle the dispute by paying – always according to the methods indicated in the annex – an amount equal to half of the imposed sanction, within the term provided for the submission of the appeal as indicated below (Article 166, paragraph 8, of the Code).

DISPOSES

pursuant to Article 166, paragraph 7, of the Code and Article 16 of the Regulation of the Authority No. 1/2019, the publication of the injunction order on the Authority's website;

pursuant to Article 154-bis, paragraph 3, of the Code and Article 37 of the Regulation of the Authority No. 1/2019, the publication of this provision on the Authority's website;

pursuant to Article 17 of the Regulation of the Authority No. 1/2019, if the conditions are met, the annotation in the internal register of the Authority provided for by Article 57, paragraph 1, letter u), of the Regulation of the violations and the measures adopted pursuant to Article 58, paragraph 2, of the same Regulation.

Pursuant to Article 78 of the Regulation, as well as Articles 152 of the Code and 10 of Legislative Decree No. 150/2011, an appeal against this provision may be made to the ordinary judicial authority, with an application filed at the ordinary court of the place identified in the same Article 10, within thirty days from the date of communication of the provision itself, or sixty days if the appellant resides abroad.

Rome, January 16, 2025

THE PRESIDENT

Stanzione

THE RAPPOREUR

Ghiglia

THE SECRETARY GENERAL

Mattei